

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: May 14, 2026

#	Case Name	Tentative
1.	30-2024-01431856 Vargas vs. Hernandez	1. Case Management Conference 2. Demurrer to Amended Complaint Defendant City of Santa Ana (“City”) <u>demurs to the Second Amended Complaint (SAC) of plaintiff Yharetzy Vargas, a minor by and through her Guardian ad Litem, Yuliana Vargas Pompa (“Plaintiff”) on the ground that the third cause of action for dangerous condition of public property fails to state sufficient facts.</u> “A ‘[d]angerous condition’ is defined as ‘a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property . . . is used with due care in a manner in which it is reasonably foreseeable that it will be used.’ (Gov. Code, § 830, subd. (a).) ‘The existence of a dangerous condition is ordinarily a question of fact but “can be decided as a matter of law if reasonable minds can come to only one conclusion.” ’ ” (Mixon v. Pacific Gas & Electric Co. (2012) 207 Cal.App.4th 124, 131.) It is alleged that Plaintiff was crossing southbound on McFadden Avenue at an unmarked crosswalk at the intersection of Gates Avenue on her way to school when she was struck by a vehicle operated by defendant Grisell Gua Ramirez Hernandez. (SAC ¶¶ 21-23.) The intersection is located at or near a designated school zone. (SAC ¶ 21.) Plaintiff fell to the ground upon impact and defendant Madeline Ortiz, who was travelling at an unsafe rate of speed, drove over Plaintiff as she laid on the ground. (SAC ¶¶ 23-25.) Plaintiff alleges that the intersection of McFadden Avenue and Gates Street is a multi-lane arterial area with at least two parallel eastbound through lanes, no stop control for east-west traffic and no median refuse, pedestrian island, or curb extensions. (SAC ¶ 29.) Further, the approach geometry and parallel-lane configuration create screened sightlines where vehicles traveling or stopping in the near lane can obstruct the view between a pedestrian and drivers in the adjacent lane until the parties are in close proximity. (SAC ¶ 29.) Because McFadden Avenue and Gates Street serve nearby schools and neighborhood destinations, it was reasonably foreseeable that students would cross at or near the intersection as part of ordinary travel. (SAC ¶ 30.) Plaintiff further alleges that the configuration of the unmarked crosswalk, including curb cuts, ramps, and paved pedestrian paths leading directly to the crossing, invited and encouraged pedestrians, including students, despite the absence of adequate safety measures or traffic controls to protect them. (SAC ¶ 66.) The City <u>first argues</u> that <u>the SAC fails to state a cause of action for dangerous condition of public property because the allegations admit that Defendants Hernandez and Ortiz were not driving with due care, as it is alleged that they failed to yield the right of way and were speeding, respectively.</u> “ ‘If [] it can be shown that the property is safe when used with due care and that a risk of harm is created only when foreseeable users fail to exercise due care, then such property is not ‘dangerous’ within the meaning of section 830, subdivision (a).” ’ ” (Thimon v. City of Newark (2020) 44 Cal.App.5th 745, 754-755.) Here, Plaintiff is alleging that the risk of harm was created not only by Defendants Hernandez and Ortiz’s driving but by the design of the unmarked crosswalk. The SAC

on its face does not show that Plaintiff's damages were caused only by Defendants Hernandez and Ortiz and "[a] public entity may be liable for a dangerous condition of public property even where the immediate cause of plaintiff's injury is a third party's negligent or illegal act . . . if some physical characteristic of the property exposes its users to increased danger from third party negligence or criminality." (*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1348.) **Thus, the Court finds that the City's first argument fails.**

The City **next argues** that the SAC contains only general and conclusory allegations without identifying any physical characteristics that amount to a dangerous condition. The City also argues that the alleged failures to install traffic controls or implement safety procedures without any specific facts are insufficient to establish a dangerous condition. These arguments also lack merit. Plaintiff has alleged the existence of screened sightlines at the intersection created by the approach geometry and parallel-lane configuration, along with the failure to protect pedestrians from traffic despite encouraging pedestrians to use the unmarked crosswalk by way of curb cuts, ramps, and paved pedestrian paths. **However, these allegations are neither general nor conclusory.**

The City cites to *Cerna* in support of a finding that the allegations are insufficient to show a dangerous condition, but *Cerna* is distinguishable. In *Cerna*, the plaintiff was struck while walking in a crosswalk and alleged that the crosswalk was dangerous because it was painted white, not yellow, lacked adequate signage or a traffic signal, had no crossing guards, had no blinking lights, and was not painted with diagonal or longitudinal lines. (161 Cal.App.4th at p. 1348.) The Court finds *Cerna* is distinguishable from the instant case, where Plaintiff is alleging that it was the lack of any crosswalk at all, at a location where pedestrians were invited to cross, that created or contributed to the dangerousness of the intersection.

The City **further claims** that it is immune from Plaintiff's claim under Government Code sections 830.4 and 830.8. Section 830.4 provides: "A condition is not a dangerous condition within the meaning of this chapter merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs, as described by the Vehicle Code, or distinctive roadway markings as described in Section 21460 of the Vehicle Code." Section 830.8 provides: "Neither a public entity nor a public employee is liable under this chapter for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code. **Nothing in this section exonerates a public entity or public employee from liability for injury proximately caused by such failure if a signal, sign, marking or device (other than one described in Section 830.4) was necessary to warn of a dangerous condition** which endangered the safe movement of traffic and which would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care."

Here, Plaintiff alleges that the lack of a crosswalk where pedestrians were invited to cross, combined with the lack of pedestrian refuge, long exposure time, typical approach speeds, and screened sightlines, created the dangerous condition. (SAC ¶ 69.) Thus, Plaintiff is not alleging a dangerous condition "merely" because of the failure to provide signals, signs, or roadway markings. Further, the allegations could support a finding that a roadway marking was necessary to warn of a dangerous condition which endangered the safe movement of traffic and which would not be reasonably apparent to or anticipated by a person exercising due care. This pleading is sufficient to survive demurrer.

Lastly, the City argues that the new allegations of a concealed trap are barred by the Government Claims Act, as Plaintiff's tort claim reveals no allegation of a concealed trap relating to a dangerous condition of public property. A complaint against a public entity " 'is vulnerable to demurrer if it alleges a factual basis for recovery which is not fairly reflected in the written claim.' " (*Stockett v.*

		<i>Assoc. of Cal. Water Agencies Joint Powers Ins. Authority</i> (2004) 34 Cal.4th 441, 447.) “The claim, however, need not specify each particular act or omission later proven to have caused the injury. [Citation.] A complaint's fuller exposition of the factual basis beyond that given in the claim is not fatal, so long as the complaint is not based on an ‘entirely different set of facts.’ ” (<i>Ibid.</i>) The City’s request for judicial notice of Plaintiff’s tort claim is GRANTED. (Evid. Code, § 452(h).) Plaintiff’s tort claim states that Plaintiff was struck due to the unsafe design of the roadway and/or intersection at McFadden Avenue and Gates Street and that the location lacked appropriate traffic control devices of pedestrians. It further states that the geometry of the roadway, curvature of the roadway, lack of warning, inadequate lighting, and inability to see other vehicles and pedestrians were physical features of the location which made it dangerous and the roadway created a trap for motorists and pedestrians. Despite the City’s contentions, the Court finds that the theory of a concealed trap is fairly reflected in Plaintiff’s written tort claim. Based on all the above, the demurrer to the SAC is OVERRULED in its entirety. Plaintiff to give notice.
2.	30-2025-01503814 Memory Lane Homeowners Association vs. Grace	1. Case Management Conference 2. Demurrer-Other Defendant Andrew Robert Grace (“Defendant”) demurs to the Complaint of plaintiff Memory Lane Homeowners Association (“Plaintiff”). As an initial matter, the Court notes that Defendant has not filed a meet and confer declaration as required under Code of Civil Procedure section 430.41. The Court further notes that Defendant has not filed any proof of service of the moving papers in violation of Cal. Rules of Court, rule 3.1300(c). Defendant is admonished that the failure to fully comply with all applicable statutes and rules in the future could result in a motion being taken off calendar or denied and the imposition of sanctions, if appropriate. The Court further notes that Plaintiff did oppose the demurrer, and served its opposition on Defendant, a self-represented litigant, by electronic service. Service upon a self-represented litigant by electronic service is only permitted when that party has served notice that the party accepts electronic service and filing the notice with the Court or manifested affirmative consent through electronic means with the Court or the Court’s electronic filing service provider. (Code Civ. Proc., § 1010.6(c); Cal. Rules of Court, rule 2.251(b)(1).) There are no filings showing that Defendant has consented to electronic service or manifested affirmative consent. Absent such consent, Defendant must be served by nonelectronic means. Defendant argues that the County of Orange has no jurisdiction over the property, Plaintiff has no claim or jurisdiction over the property, and Plaintiff’s counsel have no jurisdiction over the property. None of Defendant’s arguments raise a colorable argument that the Court has no jurisdiction over the subject matter of this action, which concerns real property located within this County. Thus, the demurrer on <u>lack of jurisdiction</u> grounds is OVERRULED. Defendant argues that the Complaint is uncertain because documents from the City of Aliso Viejo are not attached, incorrect portions of the subject CC&Rs are cited, no clear property line is stated,

		and the work was performed 22 months ago. Demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) Defendant’s argument does not show that the Complaint is so incomprehensible that Defendant cannot reasonably respond. Defendant further points out that no homeowner is listed as a Plaintiff. However, Plaintiff, as the homeowners association, has standing to enforce the CC&Rs and is a proper plaintiff. (Civ. Code, § 5975(a) [“servitudes may be enforced by any owner of a separate interest or by the association”].) Thus, the demurrer based on <u>uncertainty</u> is OVERRULED. Defendant argues that the Complaint fails to state facts sufficient to constitute a cause of action. However, Defendant does not assert any meritorious argument that the causes of action in the Complaint fail to state sufficient facts. Defendant does not discuss the elements of Plaintiff’s breach of the CC&Rs or declaratory relief causes of action or provide any argument as to how either cause of action is insufficiently pled. Thus, the demurrer based on <u>failure to state sufficient facts</u> is OVERRULED. Defendant argues the Complaint fails to state the contract type. However, the Complaint identifies the contract upon which Plaintiff sues to be the written CC&Rs, a copy of which is attached to the Complaint as Exhibit A. Thus, the demurrer based on the <u>failure to state whether the contract is written, oral, or implied</u> is OVERRULED. Lastly, Defendant contends that the projects at issue were completed 22 months ago and the statute of limitations has expired. However, the statute of limitations on an action for breach of an association’s CC&Rs is five years. (Code Civ. Proc., § 336(b).) Even if Defendant’s assertion that the work was completed 22 months ago were accepted as true, the Complaint would have been filed well within the applicable statute of limitations. Thus, the demurrer based on the <u>statute of limitations</u> is OVERRULED. <u>Defendant to file an Answer to the Complaint by June 11, 2026.</u> Plaintiff to give notice.
3.	30-2025-01476971 Audenis vs. Contractors State License Board	1. Case Management Conference 2. Demurrer-Other Respondent Contractors State License Board demurs to the First Amended Petition of Writ of Administrative Mandate on the grounds that (1) Petitioner does not have standing to pursue the causes of action alleged on behalf of the corporate licensees and (2) the First Amended Petition is generally uncertain and does not state facts sufficient to constitute the causes of action alleged. Petitioner Patrick Audenis (“Petitioner”), proceeding <i>in pro per</i>, opposed the demurrer. Petitioner argues that he has standing because Respondent is imposing disciplinary fines against Petitioner when such fines should be imposed against the corporate licensees. First Amended Petition of Writ of Administrative Mandate contains the following three causes of action: (1) violation of due process pursuant to Civil Code section 1094.5 and the 14th Amendment of the U.S. Constitution, (2) exceeding statutory authority/improper piercing of corporate veil pursuant to Code of Civil Procedure section 1085, Business and Professions Code section 7068, and 11 U.S.C § 524, and (3) government defamation/stigma plus pursuant to Code of Civil Procedure section 1094.5.

I. JUDICIAL NOTICE

Evidence Code section 452 states:

“Judicial notice may be taken of the following matters to the extent that they are not embraced within Section 451:

- (a) The decisional, constitutional, and statutory law of any state of the United States and the resolutions and private acts of the Congress of the United States and of the Legislature of this state.
- (b) Regulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States.
- (c) Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.
- (d) Records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.
- (e) Rules of court of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.
- (f) The law of an organization of nations and of foreign nations and public entities in foreign nations.
- (g) Facts and propositions that are of such common knowledge within the territorial jurisdiction of the court that they cannot reasonably be the subject of dispute.
- (h) Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452.)

“Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, *but do not take judicial notice of the truth of the factual matters asserted in those documents.*” (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400, *as modified* (Jan. 6, 2023) [emphasis in original].)

Here, Respondent requests judicial notice of the following documents:

- 1. CSLB License Certification for Harrison Building (License No. 951412) dated 25 December 15, 2025, attached as Exhibit 1.
- 2. CSLB License Certification for Ardenne Construction Corp. (License No. I 101437) 27 dated December 22, 2025, attached as Exhibit 2.
- 3. CSLB License Certification for Brix Construction Inc. (License No. I 0523 80) dated December 22, 2025, attached as Exhibit 3.
- 4. CSLB License Certification of No Licensure for Patrick Audenis dated December 19, 2025, attached as Exhibit 4.
- 5. True and correct copy of Citation No. 2-2023-001426 (1426 Citation) issued against Harrison Building on November 15, 2023, attached as Exhibit 5.
- 6. True and correct copy of Citation No. 2-2023-001799 (1799 Citation) issued against Harrison Building on February 7, 2024, attached as Exhibit 6.

7. True and correct copy of Citation No. 2-2022-002455 (2455 Citation) issued against JO Harrison Building on June 7, 2023, attached as Exhibit 7.
8. True and correct copy of Accusation No. N2024-259 (Accusation Matter) filed against Harrison Building on May 6, 2025, attached as Exhibit 8.
9. True and correct copy of Notice of Ruling enclosing the Court's Minute Order from November 6, 2025, attached as Exhibit 9.

In opposition, Petitioner states “Petitioner does not object to the Court of taking judicial notice of the existence the public records identified in Respondent’s Request for Judicial Notice and contents the limited extent permitted by Evidence Code section 452.” Petitioner further states that he “does not dispute the authenticity of Respondent’s exhibits” proffered in its Request for Judicial Notice. (ROA 55.)

Given the above, Respondent’s Requests for Judicial Notice are GRANTED for purposes of determining Petitioner’s license status and the licensee associated with License No. 1101437. The license status as registered with the Contractors State License Board is subject to judicial notice as “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452, subd. (h).)

II. STANDING AND UNCERTAINTY

First, Respondent argues that Petitioner does not have standing to pursue the causes of action alleged on behalf of the corporate licensees. Respondent argues that the damages were incurred by the corporate licensees and not to Petitioner as an individual. Respondent also argues that the allegations in the Petition are uncertain.

Petitioner argues that he standing because Respondent is imposing disciplinary fines against Petitioner when such fines should be imposed against the corporate licensees.

“[W]hen a demurrer or pretrial motion to dismiss challenges a complaint on standing grounds, the court may not simply assume the allegations supporting standing lack merit and dismiss the complaint.” (*Barefoot v. Jennings* (2020) 8 Cal.5th 822, 827.) “Instead, the court must first determine standing by treating the properly pled allegations as true.” (*Ibid.*) “If, having taken the allegations as true, the court finds no standing, it should sustain the demurrer or dismiss the petition.” (*Ibid.*) “If it finds standing by contrast, the court should allow the litigation to continue.” (*Ibid.*)

“[A] person who invokes the judicial process lacks standing’ if he, or those whom he properly represents, does not have a real interest in the ultimate adjudication because the actor has neither suffered nor is about to suffer any injury of significant magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented.” (*City of Santa Monica v. Stewart* (2005) 126 Cal.App.4th 43, 60, *as modified on denial of reh'g* (Feb. 28, 2005).)

Here Petitioner has not established standing to bring this Petition. For example, in the body of the Petition, Petitioner alleges that he “is an individual California licensed contractor (License No. 1101437) residing in Huntington Beach.” (First Amended Petition, ¶ 4.) He further alleges that the “First Amended Petition is brought solely in Petitioner’s individual capacity as Patrick Audenis, a

	natural person and holder of individual Contractor License No. 1101437. No relief is sought on behalf of any corporation.” (FAP, ¶ 6.) However, the exhibits attached to the Petition and the judicially noticeable documents proffered by Respondent (the authenticity of which Petitioner “does not dispute,” <i>see</i> ROA 55) establish that Petitioner is not the licensee associated with License No. 1101437. In fact, in Petitioner’s “Response to Respondent’s Request for Judicial Notice,” Petitioner states the following: “Respondent’s RJN establishes the following undisputed facts : 1. All citations at issue were issued exclusively to Harrison Building Inc., a corporate licensee. 2. Harrison Building Inc. filed bankruptcy in May 2024 and was later dissolved. 3. Petitioner does not hold an individual contractor license. 4. No citation, accusation, or disciplinary action has ever been issued against Petitioner personally. These facts are not contested. They are central to Petitioner’s claim.” (ROA 55.) Because Petitioner is setting forth two different arguments about whether he is the licensee under License No. 1101437, the Court finds that Petitioner has not established standing. For this same reason, the Petition remains generally uncertain. Whether Petitioner, as an individual, is licensed under License No. 1101437 is pivotal in establishing standing because Petitioner is claiming that he has been injured by Respondent because Respondent attached certain citations and suspensions to “Petitioner Patrick Audenis’s individual license record (License No. 1101437).” Based on the allegations in the Petition, the documents attached thereto, and the judicially noticed documents, it appears that License No. 1101437 is suspended. Thus, if License No. 1101437 is not held by Petitioner as an individual, Petitioner does not have standing to sue for any wrongful citation attachments or suspensions to that license number and the action must be brought by the corporation or individual holding License No. 1101437. The demurrer to the entire First Amended Petition is SUSTAINED with FINAL LEAVE TO AMEND. Any amended Petition to be filed 30 days from notice of this order. Respondent to give notice.
4.	30-2025-01456606 Mackey vs. Packnit 1. Case Management Conference 2. Motion to Be Relieved as Counsel of Record Marc Lazo of K&L Law Group, P.C. (“Moving Attorney”) moves to be relieved as counsel of record for plaintiff Daniel Mackey. The motion is unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. However, it is unclear whether proper service has been performed. Moving Attorney’s declaration does not indicate whether the client was personally served with the motion papers or served by mail. Further, the proofs of service filed with the moving papers indicate that service was done by email but they do not list any email address for the client.

		Further, if service was by email, there is no declaration stating that the electronic service address is the client's current electronic service address as required under rule 3.1362. Accordingly, Moving Attorney is ordered to provide updated proofs of service to the Court on or before the hearing date showing that Plaintiff was properly served with the moving papers either by mail or email. If service was by email, Moving Attorney shall provide a supplemental declaration stating that the electronic service address is the client's current electronic service address as required by rule 3.1362(d)(2). If Moving Attorney provides proof that the moving papers were properly and timely served on the client, the motion to be relieved will be GRANTED. The order relieving counsel will be effective upon counsel filing a proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (Cal. Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
5.	30-2025-01499688 Barrera vs. Toyota Motor Sales, USA Inc	1. Case Management Conference 2. Demurrer to Complaint 3. Motion to Strike Portions of Complaint Defendant, Toyota Motor Sales, U.S.A., Inc.'s demurrer and motion to strike directed at the Complaint of Plaintiffs David Barrera and Maria Barrera (ROA 33, 37) set for hearing on May 14, 2026, are MOOT. A First Amended Complaint was filed on May 1, 2026. (ROA 87). When a plaintiff files an amended complaint after a demurrer or motion directed to the original complaint is filed, but before they are decided, the demurrer or motion becomes moot. (<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477; <i>State Compensation Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1130-1131; <i>Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.</i> (2004) 122 Cal.App.4th 1049, 1054. "[A] plaintiff has a right to amend his or her pleading at any time before a responsive pleading is filed and even after a responsive pleading is filed up to the time of the hearing on the demurrer." (<i>Barton v. Khan</i> (2007) 157 Cal.App.4th 1216, 1221 [finding that trial court erred in refusing to accept the amended complaint for filing and explaining that the clerk should have accepted amended complaint filed three days before hearing on a demurrer to complaint, and had clerk done so, the hearing on the demurrer would have been taken off calendar].) Accordingly, the hearing on May 14, 2026, is VACATED. IT IS SO ORDERED. The <u>Case Management Conference</u> is CONTINUED to June 11, 2026 in Department C34 at 9:00 a.m. The Court orders clerk to give notice.
6.	30-2024-01415362 Vascular Imaging Professionals, Inc vs. Advanced Cardiology Center	1. Motion to Quash Discovery Subpoena Based on applicable law, and for the reasons set forth herein, Defendants Advanced Cardiology Center ("ACC") and Syed J. Raza's ("Dr. Raza") (together, "Defendants") Motion to Quash Subpoena to Bank of America is GRANTED.

This is a collections action in which Plaintiff asserts a cause of action for breach of contract against both Defendants, and a cause of action for breach of personal guarantee against Dr. Raza. The contract is alleged to have been entered into on May 20, 2022 and concerned the provision of nuclear imaging services by Plaintiff to Defendants. (FAC ¶ 9; ROA 44, Notice of Errata.) Defendants are alleged to have breached the contract by:

- Failing to complete the three-year term
- Failing to utilize a minimum of fifty service days per year
- Failing to honor the exclusivity provision of the Agreement and
- Failing to reimburse Plaintiff for its out-of-pocket expenses

(FAC ¶ 12.)

The subject subpoena was issued by Plaintiff Vascular Imaging Professionals, Inc. to third party Bank of America. It seeks:

Category No. 1: All statements reflecting balances, transfers, deposits and withdrawals from accounts held by SYED J. RAZA M.D., INC. or ADVANCE CARDIOLOGY MEDICAL GROUP from January 1, 2022, to the present, including without limitation, statements from Account Number [REDACTED]4118.

Category No. 2: All statements reflecting balances, transfers, deposits and withdrawals from account held jointly by SYED J. RAZA M.D., INC. or ADVANCED CARDIOLOGY MEDICAL GROUP, on the one hand, and SYED J. RAZA, M.D., on the other hand, from January 1, 2022, to the present, including without limitation, statements from Account Number [REDACTED]4118.

Category No. 3: All records, including account statements, check images, deposit and withdrawal slips, and other transaction records, reflecting transfers of funds between or among any account held by SYED J. RAZA M.D., INC. or ADVANCED CARDIOLOGY MEDICAL GROUP, on the one hand, and SYED J. RAZA M.D., on the other hand from January 1, 2022, to the present.

Category No. 4: All records, including account statements, check images, deposit and withdrawal slips, and other transaction records, reflecting transfers of funds between or among any account held by SYED J. RAZA M.D., INC., ADVANCED CARDIOLOGY MEDICAL GROUP, or SYED J. RAZA M.D., on the one hand, and Modern Nuclear Inc., on the other hand, from January 1, 2022, to the present.

Pursuant to Code of Civil Procedure section 1987.1, a party may move for an order “quashing [a] subpoena entirely, modifying it, or directing compliance with it upon those terms and conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1, subd. (a) and (b)(1).)

When requested discovery material “falls manifestly within the Constitution's protected area of privacy. . . the requested material is constitutionally protected, the ordinary yardstick for discoverability, i.e., that the information sought may lead to relevant evidence, is inapplicable. [Citation.] Moreover, it is not enough to show the matters encompassed by the right of privacy are merely relevant to the issues of ongoing litigation. There must be a careful balancing of the compelling public need for discovery against the fundamental right of privacy.” (*Juarez v. Boy*

Scouts of Am., Inc. (2000) 81 Cal.App.4th 377, 392, disapproved of on another ground by *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204.)

Individuals have a legally recognized privacy interest in their personal financial information under the California Constitution. (*Look v. Penovatz* (2019) 34 Cal.App.5th 61, 73; *SCC Acquisitions, Inc. v. Sup.Ct. (Western Albuquerque Land Holdings, LLC)* (2015) 243 CA4th 741, 755.) While corporations also have a right to privacy, it is more limited, as it is not a constitutional right. (*SCC Acquisitions* at 755-756.)

Defendants object to the production of the requested documents by Bank of America on privacy grounds. Defendants contend that third parties' rights of privacy are implicated because the requested documents would release the names of Plaintiff's competitors, along with the payment amounts of the other services utilized by Defendants. Further, Defendants contend that the information would provide Dr. Raza's personal financial status to Plaintiff by allowing Plaintiff to see how much Dr. Raza earns from his medical practice—which is not relevant to a breach of contract action.

Plaintiff contends that Defendants' and third parties' privacy interests are outweighed because the requested information is expected to establish alter ego liability; the documents are relevant to the issues of timing and Dr. Raza's true motivation in breaching its contract with Plaintiff; and the documents will enable Plaintiff to pinpoint exactly when Defendants switched from using Plaintiff to using the services of Plaintiff's competitor, Modern Nuclear Inc. (Medel Decl. ¶¶ 2-5.) Plaintiff further contends that any privacy concerns can be ameliorated through the use of a stipulated protective order, and documents can be initially produced only to Defendant's counsel. (Medel Decl. ¶ 6.)

"Under the alter ego doctrine . . . when the corporate form is used to perpetrate a fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose, the courts will ignore the corporate entity and deem the corporation's acts to be those of the persons or organizations actually controlling the corporation, in most instances the equitable owners. The alter ego doctrine prevents individuals or other corporations from misusing the corporate laws by the device of a sham corporate entity formed for the purpose of committing fraud or other misdeeds." (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538 (internal citations omitted).)

Here, the FAC alleges that Dr. Raza was a signatory to the Equipment and Personnel Lease and that he personally guaranteed it. (FAC ¶¶ 9-10.) Additionally, Dr. Raza is alleged to have separately executed a written personal guarantee of payment for all amounts due under the Agreement. (FAC ¶ 15.) Thus, because Dr. Raza would already be liable for any breach of either of the contracts at issue in this case, it is unclear why Plaintiff would need to additionally prove that ACC is an alter ego of Dr. Raza.

Further, there is other, less intrusive, discovery which can be taken to elicit evidence to support an alter ego theory. Plaintiff has not demonstrated that any such other discovery has been taken, or explained why the highly intrusive and extremely broad requests in the subpoena are necessary at this juncture.

Plaintiff's proffered explanation that the requested documents will show Defendants' motivation for breaching the contracts fares no better. Plaintiff has not explained how or why motive would be an element of its causes of action for breach of contract.

		As to Plaintiff’s contention that the requested documents would show when Defendants began using the services of Plaintiff’s competitor, Plaintiff has not explained why less intrusive methods cannot be used to gather this information. The same applies to Plaintiff’s contention that the documents will help Plaintiff prove damages (ostensibly, for breaching the exclusivity provision). Accordingly, the <u>motion to quash</u> is GRANTED. Both parties’ requests for <u>sanctions</u> are DENIED. Per CCP §1987.2, the court does not find the motion or opposition were made or opposed in bad faith or without substantial justification. Defendants to give notice.
7.	30-2024-01431381 Hart vs. Pacific Specialty Insurance Company	1. Motion to Compel Production Plaintiff, Rory Hart (“Plaintiff” or “Hart”), moves for an order compelling Defendant, Pacific Specialty Insurance Company (“Defendant” or “PSIC”), to provide further responses and to produce documents responsive to Plaintiff’s Request for Production of Documents, Set One (“RFP”), as well as imposing monetary sanctions in the amount of \$16,900 against Defendant, PSIC. A Joint Report was timely filed and served pursuant to the Court’s February 26, 2026 Order. (See ROA 96.) The Joint Report provides that on September 26, 2025, the parties agreed on a mutual one-week extension for Defendant to respond to Plaintiff’s September 22, 2025, meet and confer letter, which extended Plaintiff’s motion filing deadline from September 30, 2025, to October 7, 2025. (Joint Stipulation, ¶ 4.) The instant motion to compel was timely filed on October 6, 2025. The Joint Report provides that the parties engaged in further meet and confer efforts by telephone, that Defendant provided supplemental responses, and that RFP, Nos. 15-26, 29, and 51-52 have been resolved. What remains at issue is RFP, Nos. 27, 28, and 30. (Joint Report, ¶ 2.) <u>Defendant contends</u> that requested documents are not relevant, are protected by the constitution right to privacy, and contain trade secrets, and that these requests require a showing of compelling need that outweighs the serious privacy interests of PSIC personnel. Defendant asserts that PSIC’s personnel records include confidential performance evaluations that may include highly personal information and that Plaintiff has not attempted to obtain any relevant information sought by less intrusive means. <u>Plaintiff contends</u> that personnel records no longer require a showing of compelling need, and that trial court need only balance a plaintiff’s need for the personnel files against the privacy interests of a defendant’s employees. A demanding party may move for an order compelling a further response to a demand for inspection if a statement of compliance with the demand is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc. § 2031.310(a).) The motion must set forth specific facts showing good cause justifying the discovery sought by the discovery request. (Code Civ. Proc. § 2031.310(b)(1).) For a request to produce documents, “a party who seeks to compel production must show ‘good cause’ for the request . . . but where, . . . , there is no privilege issue or claim of attorney work product, that burden is met simply by a fact-specific

showing of relevance.” (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) If the moving party demonstrates good cause, then the opposing party must justify any objections. (*Kirkland v Superior Court* (2002) 95 Cal. App. 4th 92, 98.)

REQUEST FOR PRODUCTION NO. 27:

YOUR PERFORMANCE REVIEW of Chelsea Renfree including but not limited to any internal disciplinary actions or threatened internal disciplinary actions, from January 1, 2021, to the date of production. (The term “PERFORMANCE REVIEW” shall mean and refer to any record of record of periodic or occasional written assessments, reviews and/or evaluations of work.)

REQUEST FOR PRODUCTION NO. 28:

DOCUMENTS describing YOUR metrics used to assess or measure job performance of Chelsea Renfree from January 1, 2021, to the date of production.

REQUEST FOR PRODUCTION NO. 30:

DOCUMENTS describing specific goals set for Chelsea Renfree from January 1, 2021, to the date of production.

The instant action is an insurance bad faith action brought by Plaintiffs against PSIC which asserts two causes of action: (1) breach of the covenant of good faith and fair dealing, and (2) breach of contract.

Plaintiff sets forth facts showing good cause justifying these requests which seek the personnel records of a claims adjuster involved in the subject claim, i.e., performance review of Chelsea Renfree from January 1, 2021 to the present, metrics used to assess or measure job performance of Chelsea Renfree from January 1, 2021, to the present, and documents describing specific goals set for Chelsea Renfree from January 1, 2021, to the present.

Vague, Ambiguous, Overbroad

The objections that the requests are vague and ambiguous are **overruled**.

However, the requests are **overbroad** as they request documents “to the date of production.” **The Court finds that a time period from January 1, 2021, to January 1, 2024, properly limits the requested documents to include two years prior to loss through the alleged bad faith and denials of the claim in 2023 and 2024 by Chelsea Renfree.**

Attorney-Client Privilege and/or Work Product

“The party claiming the [attorney-client] privilege has the burden of establishing the preliminary facts necessary to support its exercise, i.e., a communication made in the course of an attorney-client relationship.” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733.) “The person claiming protection under the attorney work product doctrine bears the burden of proving the preliminary facts to show the doctrine applies. [Citation.]” (*League of California Cities v. Superior Court* (2015) 241 Cal.App.4th 976, 993.)

PSIC has not met its burden of establishing the preliminary facts necessary to support that any of the documents responsive to RFP, Nos. 27, 28, and 30 are protected by the attorney-client privilege or work product doctrine, and thus the challenges are overruled on this ground

Legal Conclusion, Compound, Unduly Burdensome, Oppressive

The requests at issue do not seek a legal conclusion and are not compound.

The objections that the requests are unduly burdensome or oppressive are **overruled**. “Oppression must not be equated with burden. The objection based upon burden must be sustained by evidence of showing the quantum of work required, while to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.” (*West Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407, 417 [interrogatories].) PSIC’s objection based on undue burden is not supported by evidence showing the quantum of work required, and the objection based on oppression does not show an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought. Accordingly, these objections are **overruled**.

Trade Secrets

PSIC objects to the disclosure personnel records on the ground that they seek trade secrets and proprietary information.

In order to determine whether good cause exists to restrict dissemination of documents which purportedly contain trade secrets, Evidence Code section 1061 should be followed. (*Stadish v. Superior Court* (1999) 71 Cal.App.4th 1130, 1144-1045.) Evidence Code section 1060 provides that an owner of a trade secret has a privilege to refuse to disclose the secret. (*Id.* at p. 1144.) Evidence Code section 1061 requires that a party submit an affidavit based on personal knowledge listing the affiant’s qualifications to give an opinion, identifying the alleged trade secret, identifying the documents disclosing the trade secret, and presenting evidence that the secret qualifies as a trade secret. (*Id.* at pp. 1144-1145.)

“Trade secret” means “information, including a formula, pattern, compilation, program, device, method, technique, or process that: (1) derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and (2) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy.” (Civ. Code § 3426.1(d).)

Where the information sought is relevant to the general subject matter of the lawsuit and helpful to the preparation of the case, and the record in the case demonstrates prima facie that the information sought is directly relevant to a material element of a cause of action and further that the moving party would be unfairly disadvantaged in its proof absent the trade secret, failure to disclose the information would “work an injustice” within the meaning of Evidence Code section 1060 because one side would have evidence—reasonably believed to be essential to a fair resolution of the lawsuit—which was denied the opposing party. (*Bridgestone/Firestone, Inc. v. Superior Court* (1992) 7 Cal.App.4th 1384, 1392.) “Under such circumstances, . . . a court is required to order disclosure of a trade secret unless, after balancing the interests of both sides, it concludes that under the particular circumstances of the case, no fraud or injustice would result from denying disclosure.” (*Id.* at p. 1393.) “[I]n the balancing process the court must necessarily consider the protection afforded the holder of the privilege by a protective order as well as any less intrusive alternatives to disclosure proposed by the parties. (*Ibid.*) Therefore, a party claiming the trade secret privilege has the burden of establishing its existence. (*Ibid.*) “Thereafter, the party seeking discovery must make a prima facie, particularized showing that the information sought is relevant and necessary to the proof of, or defense against, a material element of one or more causes of action presented in the case, and that it is reasonable to conclude that the information sought is essential to a fair resolution of the lawsuit. It is then up to the holder of the privilege to demonstrate any claimed disadvantages of a protective order. Either party may propose or oppose less intrusive alternatives to disclosure of the trade secret, but the burden is upon the trade secret claimant to demonstrate that an alternative to

disclosure will not be unduly burdensome to the opposing side and that it will maintain the same fair balance in the litigation that would have been achieved by disclosure.” (*Ibid.*)

Here, **PSIC has not met its burden of establishing the existence of a trade secret privilege** as to its performance review of Ms. Renfree (RFP, No. 27), documents describing metrics used to assess or measure job performance of Ms. Renfree (RFP, No. 28), and documents describing specific goals set for Ms. Renfree (RFP, No. 30). Although PSIC presents evidence describing the efforts to maintain the secrecy of such documents, and that personnel records are highly confidential, PSIC does not establish that the documents sought contain a “trade secret.” (See ROA 78, Declaration of Patricia M. Fama, ¶¶ 4-7.)

Notice to Claims Individual

In passing, PSIC asserts that Plaintiff did not provide notice to Chelsea Renfree that they sought her confidential personnel records, and that PSIC also objects to the production of the records on these grounds. (Opposition, 11:18-22.)

PSIC cites to *Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652 in support of its assertion that PSIC’s employees are entitled to notice and an opportunity to object even though Plaintiff did not request the information by subpoena.

In *Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, the California Supreme Court considered under what circumstances a litigant may, through ordinary civil discovery procedures, obtain from a bank information disclosed to it in confidence by a customer, and concluded that the bank must first take reasonable steps to locate the customer, inform him of the discovery proceedings, and provide him a reasonable opportunity to interpose objections and seek appropriate protective orders. (*Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, 654, 658.) The facts of the instant case are **distinguishable** as it does not involve information disclosed by Ms. Renfree to her employer in confidence, but rather, involve documents and information created by PSIC. PSIC has also objected on privacy grounds on Ms. Renfree’s behalf and such objection is addressed below.

Privacy Rights

PSIC objects that the subject requests violate the privacy rights of PSIC and its employees that are protected by the California Constitution.

With regards to PSIC’s right to privacy, the extent of any privacy rights of a business entity is not settled. (*SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741, 755.) Corporations do not have a right of privacy protected by the California Constitution. (*Id.* at pp. 755-756.) Because the corporate privacy right is not constitutionally protected, the issue presented in determining whether a request for production infringes that right is resolved by a balancing test. (*Id.* at p. 756.) “The discovery’s relevance to the subject matter of the pending dispute and whether the discovery ‘appears reasonably calculated to lead to the discovery of admissible evidence’ ” is balanced against the corporate right of privacy. [Citation.] Doubts about relevance generally are resolved in favor of permitting discovery.” (*Ibid.*)

Otherwise, “when a discovery request seeks information implicating the constitutional right of privacy, to order discovery simply upon a showing that the Code of Civil Procedure section 2017.010 test for relevance has been met is an abuse of discretion. [Citation.]” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 556 (“*Williams*”).) In evaluating potential invasions of privacy, “[t]he party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is

serious. [Citation.]” (*Id.* at p. 552.) “The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]” (*Ibid.*) A compelling interest or compelling need is not required all cases, although it “is still required to justify ‘an obvious invasion of an interest fundamental to personal autonomy.’ [Citation.]” (*Id.* at p. 556.)

“Unless otherwise limited by order of the court . . . any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence . . .” (Code Civ. Proc. § 2017.010.) “For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’ . . . Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. . . . The phrase ‘reasonably calculated to lead to the discovery of admissible evidence’ makes it clear that the scope of discovery extends to any information that reasonably might lead to other evidence that would be admissible at trial. ‘Thus, the scope of permissible discovery is one of reason, logic and common sense.’ . . . These rules are applied liberally in favor of discovery.” (*Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611–1612, emphasis in original.)

“A trial court must be mindful of the Legislature’s preference for discovery over trial by surprise, must construe the facts before it liberally in favor of discovery, may not use its discretion to extend the limits on discovery beyond those authorized by the Legislature, and should prefer partial to outright denials of discovery.” (*Williams, supra*, 3 Cal.5th at p. 540.)

There is a constitutional right to privacy of an employee’s personnel file, and related employment documents. (*Board of Trustees v. Superior Court* (1981) 119 Cal.App.3d 516, 526, disapproved of on other grounds by *Williams, supra*, 3 Cal.5th 231.)

Here, the requested documents, i.e., PSIC’s performance review of Ms. Renfree (RFP, No. 27), documents describing metrics used to assess or measure job performance of Ms. Renfree (RFP, No. 28), and documents describing specific goals set for Ms. Renfree (RFP, No. 30) do implicate Ms. Renfree’s constitutional right to privacy.

Plaintiff argues that the requested documents will help Plaintiff determine whether PSIC’s adjuster mistakenly denied the claim due to incompetence or lack of training, or did so for an improper reason or in accordance with improper company values or policies. Plaintiff also argues that these documents are relevant to show how PSIC assessed Ms. Renfree’s work performance, whether there were repeated issues with claims handling, whether there were complaints related to claims handling, and other related information. Plaintiff additionally argues that the relevance and need for the requested documents outweigh any privacy concern given that Plaintiff offered to stipulate to a protective order. Based upon a review of Plaintiffs’ claims and allegations, the information sought by the documents appear relevant to Plaintiffs’ claims and are narrowly tailored to one claims adjuster for a limited period of time, and therefore, the disclosure of the requested documents serves a legitimate interest.

In balancing the interests of Plaintiff in obtaining information that is relevant to whether the denial of the claim was due to incompetence or for an improper reason and Plaintiffs’ claim for bad faith against PSIC, with the privacy concerns that are implicated in producing the requested information,

the **Plaintiff's interest in the disclosure of the records appear to outweigh the privacy interests of PSIC and Ms. Renfree.** Additionally, **the protective order** entered in this case on January 28, 2026, **will adequately address the privacy concerns and diminish the loss of privacy.** (See ROA 71.)

Plaintiff asserts that personnel files have claims staff who are responsible for investigating and adjusting their claims are discoverable, citing to unpublished federal cases. Unpublished federal cases may be persuasive, but are not binding. (*Landmark Screens, LLC v. Morgan, Lewis & Bockius, LLP* (2010) 183 Cal.App.4th 238, 251, fn. 6 [“Although we may not rely on unpublished California cases, the California Rules of Court do not prohibit citation to unpublished federal cases, which may properly be cited as persuasive, although not binding, authority”])

Plaintiff cites to cases that are persuasive. For example, *Pacific Coast Surgical Center, L.P. v. Scottsdale Insurance Company* (C.D. Cal. Mar. 11, 2019) No. CV 18-03904-PSG (KSx), 2019 WL 1199024 involved an insurance coverage and bad faith lawsuit and one request for production that sought evaluation information from the personnel file of the individual claims professional who handled Plaintiff's claim, and granted a motion to compel such documents. Thus, it is factually similar to the instant action and motion which involves an insurance bad faith action and a motion to compel the production of documents from the personnel file of the claims professional who handled the Plaintiffs' claim. The District Court found that the discovery sought was relevant to the claims and defenses at issue and proportion to the needs of the case, noting that “the importance of the bad faith claims asserted in this case, the amount in controversy, and Defendant's exclusive access to the information sought, all weigh in favor of allowing the limited discovery that Plaintiff's seek,” as well as that “this type of personnel information has ‘routinely been found to be relevant and discoverable’ in bad faith actions. [Citations.]” (*Pacific Coast Surgical Center, L.P. v. Scottsdale Insurance Company* (C.D. Cal. Mar. 11, 2019) No. CV 18-03904-PSG (KSx), 2019 WL 1199024, at *2.) The District Court acknowledged that while there were legitimate privacy concerns, such concerns could be adequately addressed by the protective order that was already entered in that case. (*Id.*, at *3.)

Similarly, in *Lieberman v. Unum Group* (C.D. Cal. Oct. 14, 2021) No. EDCV 20-1798-JGB (SPx), 2021 WL 4807643, which involved a plaintiff asserting claims for breach of contract, breach of the implied covenant of good faith and fair dealing, and financial elder abuse and a motion to compel the production of personal records of individuals who were involved in assessing the plaintiff's claim for benefits, the District Court found that the personnel records were relevant to the plaintiff's theory of bad faith, noting that “many courts have found insureds are entitled to discovery on whether claims personnel had improper incentives, financial or otherwise, to deny a claim. [Citations.]” (*Lieberman v. Unum Group* (C.D. Cal. Oct. 14, 2021) No. EDCV 20-1798-JGB (SPx), 2021 WL 4807643, at *7.) Applying California law, the District Court concluded that California's constitutional right to privacy protects the personnel records of employees, but concluded that plaintiff's interest in reviewing the requested documents outweighs the competing privacy interests of the claims individual in question, and that the defendants did not identify any feasible alternatives that would make the requested disclosure unnecessary. (*Id.*, at *8.) The District Court further noted that the protective order in that case could safeguard the privacy of those third parties, and overruled the defendants' privacy objections. (*Ibid.*)

Based on the foregoing, the Court GRANTS Plaintiffs' motion to compel further responses as to RFP, Nos. 27, 28, and 30, but limits the requests to January 1, 2021, to January 1, 2024. PSIC to provide verified further responses and to produce responsive documents within 20 days of this order, subject to the protective order entered in this case.

		<u>Plaintiff's Request for Monetary Sanctions</u> Plaintiff requests that the Court impose monetary sanctions against PSIC in the amount of \$16,900. This request is denied, based on applicable law and facts. The Court may impose a monetary sanction against any party or attorney, or both, who has engaged in a misuse of the discovery process, unless it finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2023.030(a).) The burden of showing that a party acted with substantial justification or that other circumstances make the imposition of the sanction unjust is on the losing party. (<i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 139.) Here, the Court finds that PSIC has met the burden of showing it acted with substantial justification with regards to PSIC's position as to RFP, Nos. 27, 28, and 30 as privacy rights are implicated. Plaintiff contends that he offered to stipulate to a protective order, no evidence supports this assertion with regards to RFP, Nos. 27, 28, and 30. (Motion, 18:26-19:3, 21:28-22:2.) However, it does not appear that Plaintiff offered to stipulate to a protective order with regards to RFP, Nos. 27, 28, and 30, although such offer was made as to other requests for production. (ROA 52, See Ex. 2 to Declaration of Regina Spurley.) Plaintiff to give notice.
8.	30-2025-01471567 Rojas vs. General Motors LLC	1. Case Management Conference 2. Motion for Attorney Fees Plaintiff, Martin Rojas, moves for an order awarding attorneys' fees in the amount of \$25,177.50 (37.3 hours at \$675/hr) and \$730.72 in costs and expenses. For the reasons set forth herein, and based on applicable law, the Court GRANTS attorney's fees in the amount of \$22,747.50 (33.7 hours at \$675/hr), and costs and expenses in the amount of \$730.72. Defendant, General Motors, LLC ("Defendant" or "GM") contends that the fee request is inflated, justifying the denial of the motion outright. In the alternative, GM contends that the Court should award no more than \$9,194.50 in fees and costs, reducing the fee award by 15.2 hours (\$10,260) as several time entries are unreasonable or reflect non-compensable services. GM additionally contends that Plaintiff's counsel did not satisfy his burden to show his declared rate of \$675 per hour is reasonable, and the rate should be reduced to \$600 per hour, and therefore find, at most, that \$8,520 in fees were reasonably incurred. Further, GM asserts that the cost entry for One Legal Fees in the amount of \$56.22 was not reasonably incurred such that it should be taxed and the Court should award no more than \$674.50 in costs. <i>Entitlement to Fees' and Costs</i> Civil Code section 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).) "A prevailing party under [Code of Civil Procedure] section 1032 is not necessarily a prevailing party under a separate attorney fee statute. [Citation.] As explained in <i>Wohlgemuth v. Caterpillar Inc.</i> (2012) 207 Cal.App.4th 1252, 144 Cal.Rptr.3d 545, regarding the [Song-Beverly Consumer Warranty] Act: "[W]here (as here) a fee-shifting statute is concerned, a number of Courts of Appeal

have taken the approach that attorney fees recovery is governed by the fee-shifting statute itself, rather than a rigid adherence to Code of Civil Procedure section 1032. Under this analysis, if the particular fee-shifting statute does not define prevailing party, then the trial court should simply take a pragmatic approach to determine which party has prevailed. That is, the trial court would determine which party succeeded on a practical level, by considering the extent to which each party realized its litigation objectives. [Citations.] Section 1794(d) is likewise a remedial fee-shifting statute, and thus the same practical approach to the issue of prevailing party is applicable to section 1794(d).’ [Citation.]” (*MacQuiddy v. Mercedes-Benz USA, LLC* (2015) 233 Cal.App.4th 1036, 1047.)

Here, Plaintiff’s counsel provides that the case came to a settlement on September 8, 2025, whereby Defendant agreed to repurchase the vehicle. (Kazerouni Decl., ¶¶ 15-16.) Plaintiff’s counsel also provides that Defendant agreed that Plaintiff is the prevailing party for purposes of the instant fee motion. (*Id.*, ¶ 16.) Based on the foregoing, Plaintiff is the prevailing party in this matter.

Lodestar

A court assessing a claim for attorney’s fees under Civil Code section 1794(d) uses the lodestar method to determine the reasonableness of such a claim. (*Mikhaeilpoor v. BMW of North America* (2020) 48 Cal.App.5th 240, 247-248 (“*Mikhaeilpoor*”).)

“ ‘The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are *reasonably* incurred—both from the standpoint of the time spent and the amount charged “It requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” . . . [The] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.’ [Citation.]” (*McKenzie v. Ford Motor Company* (2015) 238 Cal.App.4th 695, 698, 703; *Mikhaeilpoor, supra*, 48 Cal.App.5th at p. 247 [same].)

“In the situation of a *contingency fee* arrangement, the court in *Nightingale* stated, “for purposes of section 1794, subdivision (d), a prevailing buyer represented by counsel is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorney.” (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 105, at fn. 6, 37 Cal.Rptr.2d 149.) In either case, a prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816, 5 Cal.Rptr.2d 770.)” (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817–818

A court has wide discretion in determining what constitutes reasonable attorney fees. The court typically makes this determination based upon declarations without live testimony. The value of legal services performed in a case is a matter in which the court has its own expertise, and thus may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096; *Padilla v. McClellan* (2001) 93 Cal.App.4th 1100, 1107; *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691,

698 [“experienced trial judge is the best judge of the value of professional services rendered in his court”).]

To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may “attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (*Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc.* (2008) 163 Cal.App.4th 550, 563-564.) “The party opposing the fee award can be expected to identify the particular charges it considers objectionable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.” (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 101.)

A trial court is not required to issue any explanation of its decision with regard to a fee award. (*Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 264; *Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 65.)

Initially, Defendant argues that Plaintiff’s counsel has inflated the fees in anticipation that the Court will reduce them thereby justifying an outright denial of this motion. Defendant fails to establish that the requested fees are inflated warranting an outright denial of this motion.

Plaintiff’s Objections to the Declaration of Ryan Kay
The Court OVERRULES Objection No. 1.

Reasonableness of Hours Expended

Plaintiff’s counsel provides that they expended 29.40 hours in this case for five months of litigation where Plaintiff’s counsel conducted and participated in the following non-exhaustive list of activities: meetings with Plaintiff regarding the matter, research of similar complaints to similar Defendant model vehicles, and the preparation and filing of the lawsuit, review of Defendant’s Answer and affirmative Defenses; review of Defendant’s Meet and Confer and their proposed Stipulation And Protective Order-Confidential Designation; research regarding Defendant’s insistence on a protective order and the various conflicting court orders regarding the same; preparation and response to Defendant’s Meet and Confer; gathering and providing Plaintiff’s initial disclosures, repeated attempts to get Defendant’s to respond to Plaintiff’s attempt to meet and confer; negotiations and discussions surrounding Defendant’s request for Protective order; preparation and participation in Plaintiff’s deposition; negotiations of Vehicle Repurchase Settlement; coordination of Vehicle Tender and attendance at the Vehicle tender; and the preparation and drafting of this instant motion for fees. (Kazerouni Decl., ¶ 14, Ex. 1.)

GM asserts that the hours 29.40 hours incurred should be reduced by 15.2 hours and that the Court should find that only 14.2 hours were reasonably incurred as follows.

Pre-engagement Work—February 25, 2025 and March 31, 2025: Defendant seeks to deduct 1.7 hours (\$1,147.50) Mr. Kazerouni billed to the file before Plaintiff was even a client of Counsel’s firm. However, the work performed before Plaintiff was a client appears to have been incurred in connection with the commencement of the action. Defendant does not cite to any authority supporting that any work done before Plaintiff is a client is not reasonably incurred under Civil Code section 1794(d). No time is deducted.

Complaint—March 31, 2025: Defendant contends that Plaintiff’s counsel billed 3.1 hours (\$2,092.50) to “[d]raft[]” the Complaint, “prepare[] the documents for one legal filing,” and “file[],

and that the time should be reduced by 2.6 hours (\$1,755.00) as it could not have reasonably taken more than 30 minutes to revise a templated Complaint, and that this time includes tasks that could have been completed by an assistant or paralegal at a rate much lower than Mr. Kazerouni's rate of \$675 per hour.

Preparing binders for a hearing and printing pages cited in briefs, saving the files to a computer, and reviewing and tagging cites are examples of tasks that have been found to be purely clerical and thus noncompensable or compensable at a reduced billing rate. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187.) Defendant does not show that the tasks performed are necessarily clerical. No time is deducted.

Research—June 5, 2025: Defendant contends that 2.2 hours (\$1,485.00) billed on “[r]esearch[.]” should be disallowed as researching “new lemon law requirements” is an overhead cost that is not compensable. Defendant also contends that given the simplicity of this case, the 2.2 hours allegedly spent were not “reasonably incurred” under Civil Code §1794(d), as well as that the time is block-billed such that GM and the Court cannot assess the reasonableness of the time. GM cites to no authority establishing that Plaintiff’s counsel’s research is an overhead cost that is not compensable, or that the research on protective order issues and new lemon law requirements was not reasonably incurred. Further, the entry is not block billed in a manner that prevents the Court from assessing the reasonableness of the time billed. No time is deducted.

Prepare Initial Disclosures and Meet and Confer Letter—June 16 & 17, 2025: Defendant contends that Mr. Kazerouni “billed” 1.9 hours (\$1,282.50) to draft a meet and confer letter and the initial disclosures, and that these entries should be reduced by 1.4 hours (\$945) as Plaintiff’s counsel’s letter was a generic three-page letter, that it could not have taken longer than 30 minutes to draft this standard letter based on the statutory requirements, and that this time is block-billed such that the Court and GM cannot assess the reasonableness of the time. Defendant’s opinion that the meet and confer letter was a standard letter that should not have taken longer than 30 minutes is entirely unsupported. Nor is either entry block billed in such a manner that the Court cannot assess the reasonableness of the time billed. Additionally, in reply, Plaintiff provides that he was forced to respond to Defendant’s insistence of an unnecessary protective order, and responded with the meet and confer letter dated June 17, 2025, which is attached. (Supplemental Declaration of Mike Kazerouni (“Supp. Kazerouni Decl.”), ¶ 12, Ex. 7.) Defendant’s assertion that this is a “generic” letter is unsupported by evidence and is merely argument, which is insufficient. No time is deducted.

Block-Billed Time Signing Protective Order—July 17, 2025: Defendant contends that Mr. Kazerouni “billed” 0.9 hours (\$607.50) to communicate with GM regarding the protective order and execute same, and that this time should be reduced by 0.5 hours (\$337.50) as this time is block-billed, making it impossible for GM and the Court to determine the reasonableness of the time, and as it could not have reasonably taken longer than 20 minutes to communicate with GM regarding the protective order and execute same. Again, Defendant’s counsel’s opinion as to how long a task should have taken is merely argument, and while the entry is block billed, the entire time spent on these tasks appears to have been reasonably incurred. In reply, Plaintiff’s counsel also provides that counsel spent over 28 minutes on a call with Lisa Olsen to come to an agreement on how to move forward, and the remaining 0.4 hours for a voicemail, and two emails appears reasonably incurred. (Supp. Kazerouni Decl., ¶ 13.) No time is deducted.

Deposition Preparation with Plaintiff—July 29, 2025: Defendant contends that Mr. Kazerouni “billed” 1.5 hours (\$1,012.50) to “[d]epo prep with client,” which should be reduced by 1.0 hours (\$675) as it could not have reasonably taken longer than 30 minutes to discuss a simple lemon law deposition with Plaintiff. Defendant’s counsel’s opinion is unsupported and constitutes only

argument. 1.5 hours to prepare Plaintiff for deposition appears to have been reasonably incurred. No time is deducted.

Duplicate Time Entry—August 13, 2025: Defendant contends that Mr. Kazerouni twice billed 0.2 hours to respond to GM’s settlement offer, and requests that the duplicate entry be struck, for a 0.2 hour (\$135.00) reduction. However, Plaintiff’s counsel provides that they are not duplicative and that these entries relate to two separate communications that took place on August 13, 2025. (Supp. Kazerouni Decl., ¶ 16.) No time is deducted.

Communications—June 30, 2025, July 15, 2025, and July 17, 2025: Defendant contends that on three occasions, Mr. Kazerouni “billed” a total of 0.6 hours (\$405.00), in 0.2 increments, to “[s]en[d] follow up email,” and “[r]eceive[] email,” but that this time should be reduced by 0.5 hours (\$337.50) as it could not have taken longer than a couple minutes to send a follow-up email or receive a brief email. Defendant’s assertion is not supported by any evidence and constitutes only argument. Plaintiff’s counsel has provided a copy of the itemized billing records of contemporaneously recorded time. (Kazerouni Decl., ¶ 3, Ex. 1.) The entries for this time appear to have been reasonably incurred. No time is deducted.

Administrative Time—August 4, 2025: Defendant contends that Plaintiff’s counsel billed 0.4 hours (\$270.00) on administrative tasks such as “[p]repared, filed, and served CMC statement & [p]osting of [j]ury [f]ees,” and that this time should be reduced by 0.2 hours (\$135) as these tasks could have been completed by an assistant or paralegal at a rate less than Mr. Kazerouni’s rate of \$675 per hour. GM fails to cite to any authority establishing that such tasks constitute administrative tasks done by an attorney and that they should be deducted or allowed at a reduced hourly rate. Nor do these tasks appear to be solely administrative. No time is deducted.

Attending Vehicle Surrender After Settlement—October 9, 2025: Defendant contends that Mr. Kazerouni “billed” 1.1 hours (\$742.50) to “[a]ttend [v]ehicle [t]ender at [d]ealership,” and that this entry should be deducted as it was not necessary for Mr. Kazerouni to attend the vehicle surrender. Again, Defendant cites to no authority supporting that such task is not necessary. This task appears reasonably incurred to ensure a smooth vehicle surrender. No time is deducted.

Fee Motion—October 28 & 29, 2025, and “Anticipated”: Defendant contends that Mr. Kazerouni “billed” 6.8 hours (\$4,590.00), to draft this fee motion, “file[]” same, and for “anticipated” time of reviewing the opposition, preparing a reply, and attending the hearing, and that this time should be reduced by 3.8 hours (\$2,565) as the time claimed is facially excessive and unreasonable. Defendant asserts that the fee motion comprises of a generic 8-page motion and one declaration, that is recycled from case to case, and that the alleged time contains non-compensable administrative time. Defendant also asserts that it could not reasonably have taken longer than one hour to draft the fee motion, one hour to review GM’s Opposition and draft a reply, and one hour to attend the hearing. Once again, Defendant’s assertions are unsupported by any evidence or citation to authority, and constitute merely argument.

The Court finds that 3.8 hours (rather than 6.8 hours) related to the hours claimed for the instant fee motion, (prior to the filing of the opposition and preparation of the reply) to be reasonably incurred. The Court, therefore, deducts three hours. **The Court finds that 26.40 hours were reasonably incurred in connection with the commencement and prosecution of this action up to the filing of the fee motion.**

In reply, Plaintiff provides evidence of the *additional time expended and anticipated* as it relates to the instant motion including 2.0 hours to appear and argue at the hearing on April 16, 2026, 0.1

hours to email an offer to resolve on April 17, 2026, 0.1 hours to review and respond to an email from Ryan Kay on April 20, 2026, 0.1 hours to review and respond to an email from Ryan Kay on April 21, 2026; 3.6 hours to review the opposing papers and to research and draft the reply papers on April 28, 2026, May 4, 2026, and May 6, 2026; and 2.0 anticipated hours to prepare for and attend the hearing on the motion on May 14, 2026. (Supp. Kazerouni Decl., ¶ 9.) Thus, *Plaintiff's counsel seeks an additional 7.9 hours* for time spent related to this motion and to the subject of fees. The court finds 3 hours to review the opposing papers, research and draft reply papers and prepare for hearing to be reasonable, and thereby reduces the requested amount by .6 hrs. **The Court therefore finds an additional 7.3 hours expended to be reasonably incurred, and the anticipated time for the hearing to be reasonable.**

Reasonableness of Hourly Rate

“ ‘ “The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. [Citations.] This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel. [Citations.]” ’ [Citations.]” (*Pasternack v. McCullough* (2021) 65 Cal.App.5th 1050, 1055.)

“In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41 [citations omitted].)

Based on Plaintiff's counsel's extensive experience in consumer law, including lemon law, for the past 18 years, the hourly rate of \$675 is reasonable and commensurate with the prevailing rates with attorneys specializing in the area of consumer law within the community of Orange County. (Kazerouni Decl., ¶¶ 22-32, 37-42.) Mr. Kazerouni is the co-founder of the law firm, the law firm is a midsize, multi-jurisdictional law firm, and Mr. Kazerouni has undergone extensive training in the area of consumer law, and specifically, lemon law as well as supervises 15 attorneys in his firm. (*Id.*, ¶¶ 22, 24-26, 28-29, 31.)

GM contends that Plaintiff's counsel did not satisfy his burden to show his declared rate of \$675 per hour is reasonable in Orange County for an attorney with his experience litigating Song-Beverly claims; that Mr. Kazerouni cites no Court in Orange County approving his rate and provides no other evidence supporting his rate of \$675 per hour in Orange County; that the survey of six attorneys does not support the requested rate, and that the United States Consumer Law Attorney Fee Survey Report also does not support the requested rate. GM contends that Mr. Kazerouni's rate should be reduced to \$600 per hour.

The most comparable rate presented by Plaintiff's counsel is the rate of John Hendrickson who was admitted to practice in 2008 which was \$600 per hour in January 2025. (Kazerouni Decl., ¶ 38(f).) A rate of \$675 per hour awarded over a year later is not entirely unreasonable. In addition, the United States Consumer Law Attorney Fee Survey Report is from 2017-2018. (Ex. 3 to Kazerouni Decl.) It provides that the median rate for attorneys handling vehicle cases is \$569, and that the average attorney hourly rate for a 16-20 year attorney is \$562. (Ex. 3 to Kazerouni Decl., United States Consumer Law Attorney Survey Report, at pp. 228-229.) Plaintiff's counsel provides that \$569 in October 2017 adjusted for inflation has the same worth as \$749.25 in September 2025. (Kazerouni Decl., ¶ 42.) Defendant does not address this issue, and provides no evidence to support a reduced rate of \$600 per hour.

Based on the foregoing, the Court finds that \$22,747.50 (33.7 hours x \$675) was reasonably incurred by Plaintiff's counsel in connection with the commencement and prosecution of this action, and for this fee motion. **The Court GRANTS attorney's fees in the amount of \$22,747.50**

Costs

Plaintiff seeks costs and expenses in the amount of \$730.72.

"A party's right to recover costs is governed entirely by statute. [Citation.]" (*Boonyarit v. Payless Shoesource, Inc.* (2006) 145 Cal.App.4th 1188, 1192.) "To obtain costs, a party must comply with the applicable rules of court. [Citation.]" (*Ibid.*) Prejudgment costs must be claimed and contested in accordance with the rules adopted by the Judicial Council. (Code Civ. Proc., § 1034(a).)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (California Rules of Court, rule 3.1700(a)(1).)

Here, no Memorandum of Costs appears in the Court's file as having been filed separately or is attached to the Declaration of Mike Kazerouni. However, the Court finds that Plaintiff's counsel's declaration sufficiently provides that the items of cost are correct and were necessarily incurred in this case. (Kazerouni Decl., ¶¶ 2-6, 8, 12-14, 46.) Additionally, Plaintiff's counsel attaches "true and correct copies of costs, expenses and receipts on this matter," as Exhibit 2, which indicates fees for filings (\$469.99 + \$175.73) and for service (\$85).

Defendant contends that Plaintiff has not shown that all costs are properly compensable, and that the Court should disallow or tax the cost entry for One Legal Fees in the amount of \$56.22 as unreasonable or non-compensable because these costs were incurred for Plaintiff's counsel's convenience and are not necessary or reasonable. More specifically, Defendant takes issue with the "convenience fees" for paying by credit card which could have been avoided by paying by ACH, as well as One Legal's "eFiling Charge" and "Administration Charge." GM requests that the Court tax \$56.22, and award no more than \$674.50 in costs.

Initially, by way of its opposition, Defendant seeks to tax costs. The Court will consider the objection to the costs despite the failure to file a motion to tax costs. (See *Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 69 [considering objection to costs made in opposition to motion for attorneys' fees as the parties had stipulated to alternative procedure for awarding costs, and noting there was no prejudice to plaintiff, or a claim of prejudice, from the absence of a more formal motion to tax costs].)

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774, internal citations omitted.) Whether a cost item was reasonably necessary to the litigation presents a question of fact

		for the trial court. (<i>Ibid.</i>) “[B]ecause the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (<i>Ibid.</i>, internal citations omitted.) “An item not specifically allowable as costs under Code of Civil Procedure section 1033.5, subdivision (a), and not specifically prohibited under subdivision (b), may be allowed as costs at the discretion of the trial court if reasonably necessary to the conduct of the litigation. [Citation.]” (<i>Landwatch San Luis Obispo County v. Cambria Community Services District</i> (2018) 25 Cal.App.5th 638, 645-646.) The requirement that claimed costs be reasonable does not necessarily require that the costs be the very lowest. (<i>Id.</i> at p.646.) Fees for the electronic filing or service of documents through an electronic filing service provider if the court requires or orders electronic filing or service of documents are expressly allowed as costs. (Code Civ. Proc. § 1033.5(a)(14).) Orange County Superior Court, Local Rule 352 states, in part: “Pursuant to Code of Civil Procedure section 1010.6(d), documents filed by represented parties in all limited, unlimited, and complex civil actions must be filed electronically and allow for service electronically, unless the Court excuses parties from doing so.” The e-Filing Charge and Administration Charge are expressly allowable and are reasonable. In addition, the “Convenience Fee” for paying by a credit card is not expressly disallowed and appears reasonably necessary. The Court GRANTS costs and expenses in the amount of \$730.72. Plaintiff to give notice.
10.	30-2024-01371125 Bicknell vs. Hill Commercial Investments, Inc	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories 4. Motion to Compel Answers to Special Interrogatories 5. Motion to Compel Answers to Special Interrogatories 6. Motion to Compel Production 7. Motion to Compel Production Defendant Hill Commercial Investments, Inc. (“Defendant”) moves for an order: (1) compelling Plaintiffs Darwin Bicknell and Lissa Bareno (“Plaintiffs”) to serve responses to Defendant’s first set of Requests for Production of Documents, Special Interrogatories, and Form Interrogatories; and (2) imposing monetary sanctions against Plaintiffs’ counsel, Steven Tamer. Code of Civil Procedure sections 2030.290 and 2031.300 state that if a party to whom interrogatories or a demand for inspection “fails to serve a timely response to it,” the party waives any and all objections and the propounding party may move for an order compelling responses to the interrogatory or demand. (Code Civ. Proc., §§ 2030.290(a)-(b), 2031.300(a)-(b).) These sections also state “the court shall impose a monetary sanction . . . against any party, person or attorney who unsuccessfully makes or opposes a motion . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290(c), 2031.300(c).) Defendant electronically served the written discovery on Plaintiffs on September 22, 2025. (Declarations of Khoa D. Nguyen, ¶ 5.) Responses were due October 24, 2025. As of the October 27, 2025 filing of the motions, Plaintiffs had not served any responses. (<i>Id.</i>, ¶ 6.)

		In light of the above, Defendant’s unopposed Motions are GRANTED. Plaintiffs are ORDERED to serve verified responses, without objections, within 20 days. The Court finds no substantial justification for Plaintiffs’ failure to serve responses. Thus, the Court GRANTS Defendant monetary sanctions against Plaintiffs’ counsel, Steven Tamer, in the reduced amount of \$1,200 (3 hrs at \$400/hr), to <u>be paid within 30 days</u> to Defendant’s counsel. Plaintiff to give notice.
12.	30-2024-01390718 Chavez vs. General Motors, LLC	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication Defendant General Motors LLC (“Defendant”) filed a motion for summary judgment as to all five causes of action alleged in the Complaint, which includes the: (1) first cause of action for violation of Civil Code section 1793.2(d), (2) second cause of action for violation of Civil Code section 1793.2(b), (3) third cause of action for violation of Civil Code section 1793.2(a)(3), (4) fourth cause of action for breach of the implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5, and (5) fifth cause of action for violation of the Magnuson-Moss Warranty Act. Plaintiff Ernesto Everardo Chavez (“Plaintiff”) opposed the motion. The Motion is CONTINUED to July 2, 2026 at 1:30p.m. in C34. The Court is <i>unable to read the Exhibit A to the motion for summary judgment</i>, which is the Dealer’s Reassignment of Title and Retail Purchase Agreement showing the sale of a used model 2020 Chevrolet Silverado 1500, VIN: 3GCPYBEH0LG401310 (the “Silverado”), by Vroom, located in Texas (as Seller-Creditor) to Ernesto Everrado Chavez (as Buyer) on January 22, 2021. <u>Defendant is ORDERED to file a more legible copy of this agreement.</u> <i>No further briefing.</i> Defendant to give notice.